SHANTELLE MINING (PRIVATE) LIMITED
versus
YUSUF PHIRI
and
PETER NZABUKO
and
MINISTER OF MINES AND MINING DEVELOPMENT N.O.
and
PROVINCIAL MINING DIRECTOR (MASHONALAND WEST) N.O.
and
THE SHERIFF OF THE HIGH COURT OF ZIMBABWE N.O.

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE: 2 & 25 February 2026

Opposed Application

O C Chisvo, for the applicant
F G Gijima, for the first & second respondents
No appearance for the third and fifth respondents

DEMBURE J:

[1] This is a court application for a declaratory order and consequential relief in terms of s 14 of the High Court Act [*Chapter 7:06*]. The application was heard on 2 February 2026, and the court handed down an *ex tempore* judgment with the operative order thereof being that the application was dismissed with costs. I was alerted by the Registrar of the request by the applicant's legal practitioners for the written reasons thereof. The following constitute the full written reasons for my decision.

FACTUAL BACKGROUND

[2] It was not in dispute that the parties were involved in some legal disputes, which were resolved amicably in Case No. HCH 4687/23. On 11 July 2024, a consent order was granted by this court in respect of the resolved disputes before KATIYO J. The order was

later issued by the Registrar on 3 September 2024. The said consent order reads as follows:

"1. Shantelle Mining (Pvt) Ltd shall pay the sum of US$15 000.00 in full and final settlement of the first and second respondent's legal fees in respect of matters that have by date of signing of granting this order been instituted or defended by the applicant and Kim Laurance and, or Hobson Zane or are pending between these parties in the High Court of Zimbabwe and the Magistrates Court of Zimbabwe.
2. Shantelle Mining (Pvt) Ltd shall pay the first and second respondents the sum of US$10 000.00 in full and final settlement of the first and second respondent's claims, damages or loss suffered in relation to their occupation and or acquisition of Virginia 2 mine and Virginia 7 mine and or employment by Mondale Mining (Pvt) Ltd.
3. The full sum of US$25 000.00 referred to in paragraphs 1 and 2 above shall be effected by the applicant on or before the expiry of twelve (12) calendar months from the date of granting of this order.
4. Pending the payment of the full settlement amount in terms hereof, the first and second respondents be and are hereby ordered not to alienate, dispose or enter into any agreement with any person in respect of Virginia 2 mine.
5. The first and second respondents shall surrender the original certificate of registration after transfer TR 9124 for Virginia 2 mine to their legal practitioners, Mr FG Gijima of FG Gijima and Associates, who shall keep the certificate of registration after transfer in trust, only to be released or surrendered to the applicant upon full payment being made in terms of this order.
6. Upon satisfaction of paragraph 3 of this order, the third and fourth respondents be and are hereby ordered to cancel certificate of registration after transfer TR Number 9124 issued to the first and second respondents in respect of Virginia 2 mine.
7. Upon satisfaction of paragraph 3 of this order, the first and second respondents shall surrender and relinquish any and or all claims they have or might have to or against Virginia 2 mine, Virginia 7 mine and Shantelle Mining (Pvt) Ltd and are hereby ordered to sign all the relevant documents as may be required by the third and fourth respondents to enable the registration of Virginia 2 mine to be effected from the first and second respondents into the name of the applicant.
8. The first and second respondents be and are hereby ordered to vacate Virginia 2 mine within 7 days of the final payment in terms of this order having been made, failure of which the sheriff of the High Court is hereby authorised to evict the first and second respondents and all those claiming occupation through them from Virginia 2 and Virginia 7 mine.
9. The applicant be and is hereby granted leave to take and assume full occupation and control of Virginia 2 mine within 7 days of making full payment in terms of this agreement, notwithstanding that transfer of the mine might not have been effected from the first and second respondents to the applicant.
10. In the event that the first and second respondents refuse, delay or for whatever reason neglect to sign the documents required by the applicant and by the third and fourth respondents for the registration of Virginia 2 mine into the name of the applicant within seven days of payment in paragraph 3 having been

completed, the sheriff of the High Court of Zimbabwe shall be authorised and empowered to sign such documents on behalf of the first and second respondents to enable Virginia 2 mine to be transferred and registered into the names of Shantelle Mining (Pvt) Ltd.

11. There will be no order as to costs."

[3] The court order is quite clear on the applicant's obligation to pay the first and second respondents a total sum of US$25,000.00. The payment was to be effected on or before the expiry of twelve (12) calendar months from the date of granting of that order. Upon payment, the first and second respondents would relinquish all their claims to Virginia 2, Virginia 7 mine and Shantelle Mining (Pvt) Ltd and have the mining claims transferred into the name of the applicant. Pending the payment, the first and second respondents were also ordered not to alienate or dispose of or enter into any agreement in respect of the said Virginia 2 mine. All subsequent processes were subject to the fulfilment by the applicant of para 3 of the order, which relates to the payment of US$25,000.00.

[4] It is also common cause that the applicant breached para 3 of the court order by failing to pay the sum of US$25,000.00 within the twelve (12) calendar months. The period stipulated in para 3 was reckoned from the date of granting of the order. It is not in doubt that at p 15 of the record, the order in question was granted before KATIYO J on 11 July 2024. The first and second respondents were only obliged to accept the tender of payment made within the stated period. The twelve (12) calendar months lapsed on 11 July 2025.

[5] On 12 September 2025, the applicant's legal practitioners wrote to the respondents' legal practitioners, stating that they were acting for an anonymous person who intended to discharge the debt on behalf of the applicant. In the same letter, there was a tender for payment of the sum of US$25,000.00. The applicant's legal practitioners requested the respondents' legal practitioners' nostro bank account details for the payments to be made.

[6] In their letter dated 15 September 2025, the first and second respondents' legal practitioners indicated that they did not know who the other legal practitioners were representing and that, in any event, whoever the party was, that person was not a party to the proceedings. They further stated that the applicant had breached the terms of the court order and could not make a tender of payment of any amount, whether itself or through a third party. To that extent, the tender was rejected on the basis that the applicant had

breached the terms of the order. It was, therefore, indicated that their clients would remain the lawful holders of rights and interests in Virginia 2 mine and that the applicant had no right or interest whatsoever in the mining claim.

[7] On 3 October 2025, the applicant approached this court seeking a *declaratur* and consequential relief in terms of s 14 of the High Court Act. The terms of the relief sought in the draft order are as follows:

> "1. The Court Application for declaratory order be and is hereby granted.
> 2. It is hereby declared, that the order of this Honourable Court granted by Honourable Justice Katiyo on the 3rd of September 2024 under Case No. HCH 4687/23 is binding, valid and of full force and effect notwithstanding any non-compliance with the stipulated payment due dates, and that such order remains extant and enforceable by either party and does not lapse by reason of delayed performance.
> 3. Accordingly, it is hereby ordered that, the First and Second Respondent's legal practitioners shall, within three (3) days of this order, provide their United States dollar denominated Trust Account details for purposes of effecting the USD 25,000 payment, failing which, the Applicant be and is hereby authorised to tender and effect payment of the sum of USD 25,000 to the Sheriff of the High Court of Zimbabwe, which payment shall constitute due performance and full discharge of the Applicant's obligations under paragraphs 1, 2, and 3 of the order in Case No. HCH 4687/23.
> 4. It is hereby declared that any purported alienation, disposal, or agreement entered into by any person with the First and Second Respondents in respect of Virginia 2 Mine is unlawful and in direct contravention of the order of this Honourable Court in Case No. HCH 4687/23.
> 5. It is hereby declared that upon Applicant's payment of the USD 25,000, the First and Second Respondents and/or their legal practitioners shall forthwith comply with paragraphs 5 through 11 of the order in Case No. HCH 4687/23, failing which the Sheriff of the High Court of Zimbabwe be and is hereby authorised and directed to take such steps as may be necessary to give effect to and enforce compliance with the said order.
> 6. The First and Second Respondents shall pay costs on an attorney-client scale, alternatively, costs *de bonis propriis*."

[8] The application was strenuously opposed by the first and second respondents. They contended that the applicant had failed to comply with the court order and was now seeking to make payment through the back door, hiding behind a *declaratur*. They also argued that the order was no longer enforceable by the reason of the breach. The applicant could not seek to be allowed to comply with the order out of time through an application of this nature. It, therefore, ought to negotiate with the respondents failure of

which it could then make an application to be allowed to make payment out of time. They argued that it was inappropriate to make the present application.

THE PRELIMINARY POINT OF LAW

[9] At the hearing, a point of law as to whether the application for a *declaratur* was properly before the court, given that there was an extant order of the court which defined the rights and obligations of the parties fully and finally in respect of the same dispute, exercised the court's mind. I had to raise it and call the parties to address the court on that point of law. It is settled that the court can raise any point of law regarding the appropriateness or the validity of an application or a matter before it, which would eventually also trigger the exercise of its jurisdiction. The law, however, requires that before making a determination on any point of law which the court would have raised *mero motu*, it ought to give the parties an opportunity to make submissions thereto. This legal position was enunciated in *Nzara & Ors* v *Kashumba N.O. & Ors* SC 18/18 at pp 11-12 where UCHENA JA stated as follows:

> "The function of a court is to determine disputes placed before it by the parties. It cannot go on a frolic of its own. Where a point of law or a factual issue exercises the court's mind but has not been raised by the parties or addressed by them either in their pleadings in evidence or in submissions from the bar, the court is at liberty to put the question to the parties and ask them to make submissions on the matter.
> In *Welkom Municipality v Masureik and Herman T/A Lotus Corp* 1997 (3) SA 363 at 371 G-H Marais JA commenting on what the court should base its decision on said:
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> > "I should add that whether or not South Africa did or did not fail to do so is a question of fact upon which there was no evidence before the court *a quo*, and for reasons too obvious to require enumeration, the learned Judge was not entitled to enquire into this issue of fact after reserving judgment and without any reference to the parties, and then to decide it. Compare *Kauesa* v *Minister of Home Affairs and Others* 1996 (4) SA 965 (NmS) at 973H – 974C."
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> In the Namibian case of *Kauesa* v *Minister of Home Affairs and Others* 1996 (4) 965 (NmS) DUMBUTSHENA AJA at pages 973H to 974C said:
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> > "The above matters are not crucial to the determination of this appeal. They are however, important because a frequent departure from counsel's, more correctly the litigant's case, may be wrongly interpreted by those who seek justice in our courts of law. It is the litigants who must be heard and not a judicial officer.
> > It would be wrong for judicial officers to rely for their decisions on matters not put before them by litigants either in evidence or in oral or written submissions. Now and again, a Judge comes across a point not argued before him by counsel but which he thinks material to the resolution of the case. It is his duty in such a circumstance to inform counsel on both sides and invite them to submit

> arguments either for or against the Judge's point. It is undesirable for a court to deliver a judgment with a substantial portion containing issues never canvassed or relied on by counsel..." (*my emphasis*)

[10] In any case, I noted that the point arises from the first and second respondents' opposing affidavit. The parties also addressed the issue in their heads of argument. Since it was not entirely a new issue, parties were adequately prepared to present oral submissions on the point of law.

SUBMISSIONS MADE ON THE POINT OF LAW

[11] Mrs *Chisvo* submitted that the application was properly before this court. She argued that the issue in contention in this matter was whether, after the due date stipulated in the court order, the court order became unenforceable by either party or the court order lapsed. It was submitted that it was the respondents' submissions that after that due date, that is, when twelve (12) calendar months passed, the court order lapsed. Therefore, they argued that the applicant could not tender any payment in compliance with the court order. Counsel referred the court to the letter at p 19 of the record as outlining the respondents' contention.

[12] It was also argued that what simply arose was that the applicant failed to comply with the order. When the court queried whether, upon failure to make payment in terms of the consent order, one would approach the court seeking a *declaratur* to be permitted to make the payment, counsel maintained that the application was proper in the circumstances. She argued that the order remains valid and enforceable, and the applicant can still comply with the court order regardless of the time frame in para 3 of the court order having lapsed.

[13] The court further queried whether it could issue a declaratory order whose effect would be to amend its own order, which specified the period within which the amount was to be paid, counsel submitted that she stood guided by the court, but in this instance, it would be appropriate for the court to do so. It must be considered that the applicant had tendered payment, albeit it being late. The court can still make a declaration of rights given the

extant order of the court. She insisted on her submissions in the papers filed of record. She finally stated that the court can make a pronouncement which they can abide by.

[14] *Per contra*, Mr *Gijima* submitted that this matter was taking the wrong procedure. It was not the correct procedure to seek a *declaratur* in this instance. The applicant had breached the terms of the order by consent, and the applicant accepted that regardless of whether they use the issuing date of 3 September 2024 or 11 July 2024. They are still out of time in complying with the order, which stated a period of 12 calendar months. Counsel referred me to para(s) B2, B3 and C1 of the first and second respondents' heads of argument, where their argument is expanded.

[15] Counsel argued that the correct procedure where a party fails to comply with an order of court, especially that which stipulates time frames, is to firstly seek the indulgence of the other party to be allowed to pay out of time. When that indulgence is refused, the next step would be to apply to a competent court for either condonation or an extension of time. This would be an application to be allowed to act out of time in either way. One would want to be condoned for non-compliance with the court order. And that is what the applicant should have done instead; the applicant has insisted on going by a declarative order. That is an untenable way to deal with the matter and the issue. The court has already declared what the parties must do.

[16] It was further argued that the applicant seems now to seek another declaratory order on top of another, but for which in the second declaratory order, the applicant is saying, it insists on payment out of time and is asking the court to declare that. He argued that the argument for doing so was wrong, and this application was seriously misguided. The application was an abuse of the court process and the respondents. It was further submitted that s 14 of the High Court Act, which provides for declarations, provides for protection of rights and interests, existing, future or contingent rights. Those rights that the applicant seeks to be declared are no longer there. The right is no longer there to pay. It lapsed. To that extent, without even going into the merits of the matter, he argued that this matter does not even have to detain the court on that point alone. He finally submitted that the matter must be dismissed.

[17] In reply, Mrs *Chisvo* submitted that she stood by the submissions that have been made in the applicant's heads of argument with respect to the validity of the application before the court. She referred the court to her further submissions in para(s) D5 to 8 of the heads of argument. She further argued that applications for declarators are there to clarify the position of the law where there is doubt or uncertainty as to the position of the law with regard to the given set of facts or circumstances. In this case, the applicant approached the court with a *declaratur* application on the premise that after the due date that had been stipulated in the court order lapsed, the remedy that was available to either party was the enforceability of that judgment. This entailed that when the due date lapsed, either the applicant or the respondents had a legal remedy in terms of the law to enforce the court order that was granted by the court. The effect of the lapsing of the due date does not entail that the court order has lapsed. The applicant was not at qualms with the court order that was granted, but simply seeks to comply with that court order by rendering payment of the US$25,000 to the first and second respondents. Thereafter, the applicant can obtain the mining rights in the Virginia 2 mine.

[18] With regards to the issue of condonation, Mrs *Chisvo* argued that her understanding was that condonation would apply if the applicant had not complied with the rules of court, not a court order. In such an instance, therefore, the applicant would then have to approach the court and seek condonation for failure to comply with the rules and seek an extension of time. However, in their case, that was not the situation. There is a valid court order in place which directs the applicant to pay the respondents and thereafter get transfer of the mining rights in Virginia 2 mine. It was, therefore, submitted that the application was properly before the court.

[19] When I queried whether she was seeking to amend the order by allowing the applicant to pay out of time through the *declaratur*, counsel argued that the court order remains as it is. However, the court would be clarifying that the position of the law is that once that due date passes, the remedy that is available to either party in that matter is to enforce that court order. The court order does not lapse and that obligation to pay or to satisfy the obligation from the court order does not pass upon that due date lapsing. She maintained

that the appropriate application to make in the circumstances is that for a declaratory order.

ISSSUE FOR DETERMINATION

[20] I will have to determine the issue which has arisen, whether or not the application before me is properly before the court. In particular, whether there is a valid application for a declaratory order given that there exists an extant court order which has finally and definitively determined the rights and obligations of the parties in respect of the dispute which is before the court.

ANALYSIS

[21] This court's jurisdiction to grant a declaratory order with or without consequential relief is governed by s 14 of the High Court Act. Thus "the High Court's declaratory jurisdiction is unlimited. It is empowered to grant declaratory orders even where consequential relief can be sought." See *Kensington Centre (Pvt) Ltd* v *Valis Bakery (Pvt) Ltd* SC 127/25 at p 14.

The relevant provision reads:

> "**14 High Court may determine future or contingent rights**
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> The High Court may, in its discretion, at the instance of any interested person, inquire into and determine any existing, future or contingent right or obligation, notwithstanding that such person cannot claim any relief consequential upon such determination."

[22] The general rule is that an extant court order has the force of law and remains binding on the parties unless and until it has been reversed or set aside by a competent court on review, appeal or through the appropriate procedure in terms of the rules for the rescission of any judgment. This rule applies even in respect of a consent order, such as the one in question. The legal position was restated in *Magauzi & Anor* v *Jekera* SC 54/22 at p 6, where UCHENA JA said:

> "When a court grants an order all subsequent acts affecting the dispute between the parties rely on the court's order and not the reason or facts the court based its judgment on. Execution of judgment debts is based on court orders and not the reason for which the court order was granted. Therefore a party or the parties cannot disregard a court order as they are bound by it. In the case of *Chiwenga v Chiwenga* SC 2/14, it was stated that:

> "The law is clear that an extant order of this Court must be obeyed or given effect to unless it has been varied or set aside by this Court and not even by consent can parties vary or depart therefrom. See also *CFU v Mhuriro & Ors* 2000 (2) ZLR 405 (S)."

[23] In *casu*, there is a consent order issued by KATIYO J on 11 July 2024 which defined the rights and obligations of the parties finally and definitively in respect of payment of the sum of US$25,000.00, which was due and payable within 12 months from the date of grant of the order. The same order also governs the rights and obligations of the parties, which were to be triggered by the payment of the said total amount, including the transfer of title in Virginia 2 mine into the applicant's name.

[24] The position of the law is now settled that it would be inappropriate to approach the court seeking a declaratory order where the court or another competent court had already issued an order determining the rights of the parties to the dispute fully and definitively. This would be in relation to a matter or issue which an extant court order has finally and fully resolved. It would, therefore, be legally incompetent to seek a *declaratur* in relation to the same issue the court has resolved, whether in a default judgment or a judgment on the merits. The application would, therefore, be invalid in such circumstances. Thus, the court, having already defined the rights and obligations of the parties in respect of the dispute, finally and definitively, the principles of issue *estoppel* and *res judicata* preclude the court from revisiting the dispute. The law was remarkably explained in the case of *Kensington Centre (Pvt) Ltd* (*supra*) at pp 14-15, where KUDYA JA had this to say:

> "[38] In the *Elephant* case, at p 1290 B-C, this Court remarked that:
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> > "A number of settled legal principles and broad considerations the discussion of which is not necessary for this judgment, combine to forbid a court from revisiting a dispute that has already been resolved. These include the principles of issue *estoppel* and *res judicata*, quite apart from the broad considerations that emphasize the need to see finality in litigation. Thus, the general position of the law is that, following the passing of a judgment in the dispute between the parties, proceedings filed thereafter by the same parties over the same dispute other than as a review or appeal, are incompetent to the extent that they do not seek to set aside or correct an extant judgment."
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> On the legal effect of a default judgment, the court stated at 1290 D-E that:
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> > "It is not disputable that a default judgment, unless rescinded, defines the rights and obligations of the parties to the subject matter to which it relates. Unless rescinded it remains binding *inter partes* and gives rise to the principles of issue *estoppel* and *res judicata* that I have referred to above. While the default judgment of 2014 registering the awards was still extant, the appellant could not

> validly bring the application for a declaratory order as it did. The rights and obligations forming the subject matter of the declaratory order had already been determined against it, albeit by implication."

In its *ratio decidendi* at p 1290 G-1291A, the Court held that:

> "It is therefore my finding that after the Magistrates' court had registered the awards, it was not competent for the appellant to approach the High Court for an order declaring the same rights that had been determined and defined in the default judgment registering the awards. Any such approach was invalid. Put differently, in the circumstances of this matter, the appellant could not avoid the default judgment against it by filing an application for a declaratory order as it did. The extant Magistrates Court decision, which defined and gave content to the rights of the parties to the dispute, robbed the High Court of any discretion in the matter at first instance."

[39] The key derivatives from the *Elephant* case are that:

1. The discretion vested in the High Court by s 14 of the High Court Act is not exercisable where the right or obligation has already been finally and definitively decided by another competent court.
2. An extant default judgment is final and definitively defines the rights and obligations of the parties over the matter to which it relates. Such a judgment and any other extant judgment may only be extinguished by way of appeal or review.
3. The principles of issue *estoppel* and *res judicata* preclude a court from revisiting a dispute that has already been finally and definitively resolved." (*my emphasis*)

[25] In this case, there is no dispute that the consent order granted before KATIYO J was a final order. Paragraphs 1-3 of that order defined the parties' rights and corresponding obligations in respect of the payment of the total sum of US$25,000.00. It was not in dispute that the applicant failed to comply with that order as it did not make the payment within the period stipulated in para 3. Now it has approached the court for a *declaratur* seeking that the court declares its order valid and binding despite the non-compliance by the applicant and that the first and second respondents' legal practitioners be compelled to furnish applicant with their bank details and the applicant be authorised to effect the payment of the sum of US$25,000.00 or that the payment be effected though the Sheriff if they fail to do so. A declaratory order was also sought to declare any purported alienation or disposal or agreement concluded by the respondents in respect of the mine to be unlawful, and that upon payment of US$25,000.00, it be declared that the first and second respondents shall comply with para(s) 5-11 of the consent order under Case No. HCH 4687/23.

[26] What is clear from a reading of the relief sought by the applicant is that the applicant was fully aware that the dispute between the parties was resolved by the court in HCH

4687/23 through a consent order. That order stated how the amount was supposed to be paid. The validity of the order cannot be an issue at all to require a *declaratur* on its validity. That would be merely an academic exercise. The law on the validity of an extant order requires no declaration. It is settled.

[27] The same order was very clear as to when the payment or any valid tender of payment ought to have been made. That period lapsed. It is clear that the applicant sought to re-litigate the dispute by seeking to make the payment of US$25,000.00 out of time through the back door. In other words, the applicant was indirectly seeking to amend or vary the consent order by purporting to seek an order to sanitise its breach of the order under the guise of a *declaratur*. That the court cannot do. The consent order clearly defined the rights and obligations of the parties, with the payment of US$25,000.00 being the trigger for the operation of para(s) 5-10. The order finally and definitively dealt with those aspects of the parties' dispute. The principle of issue *estoppel* and *res judicata* would preclude me from reopening the same dispute. The Supreme Court in *Kensington Centre* (*supra*) held that an application for a *declaratur* in such circumstances would be invalid.

[28] I agree with Mr *Gijima* that there are no rights or obligations to declare in the circumstances where the applicant clearly seeks to effect payment of the amount it failed to pay in terms of the court order. The law is clear that where one has failed to comply with a court order, the remedy is to seek condonation and an extension of time to make the payment. Thus, in *Sergeant Mhande 04737T & Anor* v *The Chairman of the Police Service Commission & 2 Ors* SC 63/18 at p 3, BERE JA (as he then was) explained the correct position of the law where a party has failed to comply with a court or the rules of court in the following words:

> "It is the accepted position of the law that an applicant who has failed to comply with a given court order, or infringed the rules of the court, must seek to be condoned or pardoned for non-compliance first before applying for reinstatement of their case. In the case of *Zimslate Quartize (Pvt) Ltd & Others v Central African Building Society* SC 34/17 ZIYAMBI JA, when dealing with an almost similar matter remarked as follows: -
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> "An applicant who has infringed the rules of the court before which he appears, must apply for condonation and in that application explain the reasons for the infraction. He must take the court into his confidence and give an honest account of his default in order to enable the court to arrive at a decision as to whether to grant the indulgence sought. An

> applicant who takes the attitude that indulgence, including that of condonation, are there for the asking does himself a disservice as he takes the risk of having his application dismissed."
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> …It is in my view jumping the gun to seek reinstatement of an appeal before first seeking condonation and extension of time in situations where one has clearly infringed the court rules or an order of court as in this case." (*my emphasis*)

[29] There is no doubt, therefore, that when one has failed to comply with a court order, he or she must seek condonation. The argument by Mrs *Chisvo,* therefore, that condonation can only be sought for non-compliance with the court rules was legally untenable. The applicant could not, therefore, after failing to comply with the court order directing payment of the total of US$25,000 within twelve (12) calendar months from the date of the granting of the order, seek a *declaratur*. Mrs *Chisvo* accepted that the applicant simply seeks to comply with the court order by rendering payment and obtaining mining rights in Virginia 2 mine. In my view, that cannot be achieved by an application of this nature. The appropriate application could only be for condonation for the non-compliance with the court order and extension of time to pay. That way, it would take the court into its confidence and give an honest and full account of its default for the court to exercise its discretion on whether to grant the indulgence.

[30] The approach to the court seeking a *declaratur* was invalid. The applicant could not ask the court to circumvent the terms of an existing order which it had already failed to comply with. The applicant cannot be allowed to reopen the dispute as the court has already directed in terms of its final order when payment would be validly tendered or made by the applicant. The consequences for the payment were already spelt out in paragraphs 5-10 of the extant consent order. Those would only arise once the applicant had paid in terms of para 3 of the court order.

DISPOSITION

[31] It is for the above reasons that I find the application for a *declaratur*, given the extant order of this court in HCH 4687/23, to lack a proper legal footing. The applicant's obligation to make the payment within the stipulated period and the rights it would accrue thereafter had already been finally and definitively determined by the court through the consent order. A party that fails to comply with a court order must simply seek

condonation for the non-compliance and extension of time to comply unless the other party has accepted the tender of payment out of time. A *declaratur* would be legally incompetent relief in the circumstances. To that end, this application ought to fail. It is trite that where an application is brought on an improper legal footing, the appropriate order to make is to dismiss the matter rather than strike it off the roll. That is the proper exercise of the court's discretion in the circumstances. I, therefore, adopt the legal position affirmed by the Supreme Court in *Katerere & Ors* v *Triangle (Pvt) Ltd* SC 23/23 at p 10, where it was stated as follows:

> "The decision of the court *a quo* is thus correct and cannot be faulted in this regard. The court correctly exercised its discretion in dismissing the matter. In the case of *Khauyeza* v *The Trial Officer & Anor* SC 23/19, this Court held that an application brought on an improper footing ought to be dismissed rather than be struck off the roll."

[32] As regards costs, there is no reason to depart from the general rule that costs should follow the cause. There was no justification for costs on a legal practitioner and client scale *de bonis propriis,* let alone those to be borne by the applicant itself. No exceptional circumstances exist to warrant a punitive award for costs in the circumstances. Mr *Gijima* did not also motivate those costs before me at the hearing. Costs on the ordinary scale would meet the justices of this case.

[33] I accordingly dismissed the application with costs.

DEMBURE J: ……

Scanlen & Holderness, applicant's legal practitioners
F G Gijima & Associates, first & second respondents' legal practitioners